

25STCV10286 25STCV10286

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C06%2F26%2F2026

Source SHA-256: 680793a17f41049799b858831d45c3ff6d2f1dd60d79f15dc641333018205733

Case Number: 25STCV10286 Hearing Date: June 26, 2026 Dept: 512

HEARING DATE: Fri., June 26, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Johnson

v. Wesley, Jr. COMP.

FILED: 04-08-25

CASE NUMBER: 25STCV10286

NOTICE: NO

PROCEEDINGS: MOTION TO EXPUNGE LIS PENDENS

MOVING PARTY: Defendant

Curtis James Wesley, Jr.,

RESP. PARTY: None

MOTION TO EXPUNGE LIS PENDENS

(Code

Civ. Proc., § 405.20, et seq.)

TENTATIVE RULING:

Defendant Curtis James Wesley, Jr.'s

Motion to Expunge Lis Pendens, Dismiss Complaint with Prejudice, Award

Sanctions, and Refer to District Attorney for Perjury is CONTINUED TO August 11, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Defendant is to file and serve proper proof of service of the Motion and accompanying documents and notice of hearing on Plaintiff.

Moving party is ordered to give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of June 23, 2026 ☐ Late ☒

None

REPLY: None

filed as of June 23, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On April 8, 2025, Plaintiff Keiana Johnson ("Plaintiff"), proceeding pro se, filed the instant action against Defendant Curtis James Wesley, Jr. ("Defendant") alleging Breach of Contract and Common Counts causes of action.

On April 22, 2025, Plaintiff filed a Notice of Pendency of Action. (4/22/25 Notice of Pendency of Action.)

On May 6, 2025, Plaintiff filed a

second Notice of Pendency of Action. (5/6/25 Notice of Pendency of Action.)

On July 9, 2025, Defendant filed an Answer.

On May 21, 2026, the Court denied Defendant's Ex Parte Application for Order Shortening Time as "defendant does not have any motion scheduled or filed. Therefore, the Court cannot shorten time on something that has not been filed." (5/21/26 Order.)

On May 21, 2026, Defendant, now proceeding pro se, filed the instant Motion to Expunge Lis Pendens, Dismiss Complaint with Prejudice, Award Sanctions, and Refer to District Attorney for Perjury (the "Motion").

No Opposition has been filed.

II. Procedural Issues

As an initial matter, there is no proof of service filed demonstrating the Motion and notice of hearing were served in any manner on Plaintiff. (See Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.)

The Court may not rule on a motion absent proper service and notice of hearing.

III. Conclusion & Order

For the foregoing reasons, Defendant Curtis James Wesley, Jr.'s Motion to Expunge Lis Pendens, Dismiss Complaint with Prejudice, Award Sanctions, and Refer to District Attorney for Perjury is CONTINUED TO August 11, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the

next scheduled hearing, Defendant is to file and serve proper proof of service of the Motion and accompanying documents and notice of hearing on Plaintiff.

Moving party is ordered to give notice.